

ERICSON TRAIL**FEE: BTA/BOLT, INC.****C.R. HELD BY ESSEX COUNTY GREENBELT ASSOC.****APPENDIX B: PROJECT FILE CHECKLIST**General Background Documents

- ☒ Deed (of fee title or conservation easement) also see C.R. 8D
- ☒ Map of project – **in front pocket; also old plan**
- ☒ Aerial photo of project area, if available
- ☒ Approximate latitude and longitude of the property **GPS indicators on photos – 12D**
- ☒ Brief description of project, including date of acquisition, if the land or easement was donated or purchased, any partners involved in the project, or other information essential to the conveyance—may be taken from a newsletter or other document

Practice 3F – Board Approval of Land Transactions

- ☐ Material provided to board (or other decision maker) before final approval of the project (for example, a copy of the appropriate section of the packet of material provided to the board) **Entire Board familiar with the Ericson Trail– a popular hiking venue; see above for maps (general); appraisal 10B**
- ☒ Minutes of board meetings when project was discussed
- ☐ Minutes of board meeting or other record of final decision - **not found**

Practice 5B – Accountability to Donors

- ☐ Letter or other written documentation advising donor to seek independent legal and financial advice (for donation) **done verbally**
- ☒ Letter or other written acknowledgement of gift valued at more than \$250 (if donation) or a copy of federal form 8283

Practice 8B – Project Selection and Criteria

- ☒ A record of how the project meets the organization's selection criteria, including feasibility, capacity and stewardship analysis (can be a completed worksheet or checklist, minutes of a meeting, summary of a discussion, etc.) **protection criteria checklist**

Practice 8D – Public Benefit of Transactions

- ☒ A record of the public benefit of the project (could be in board minutes, easement recitals.), project checklist or other documents) - In C.R., pages 1 & 2 - purposes

Practice 8E – Site Inspection

- ☒ One or more records of a physical property inspection (can be a site evaluation form, completed checklist, etc.) **All Board members completely familiar with this land – abuts the town owned Lord Woodlot for which BTA/BOLT, Inc. actively raised funds. Frequently walked by neighboring Board members. Mrs. Ericson was on our Board some years ago, but left long before donating this land.**
- ☐ Records indicating additional research done on the property, such as mineral or water right investigations, encumbrances, etc. - **none**

Practice 8G – Project Planning

- ☒ A project plan, including project budget if applicable (can be a project planning worksheet, or a checklist coupled with landowner correspondence on the goals of the project, etc.) – **See page 2 of Quitclaim Deed, page 2 (General)**

Practice 9A – Legal Review and Technical Expertise

- ☐ Evidence of an attorney reviewing the project on behalf of the holding organization
- ☐ Evidence of additional expertise brought to the project, as applicable to the project –

Practice 9H – Title Investigation and Subordination

- ☐ Summary of title report, certificate or abstract **Salem/Essex Registry of Deeds/Deeds online**
- ☐ Evidence of title insurance, if the land or easement was purchased or if land trust obtains title insurance for donated properties
- ☐ Lien or mortgage subordinations, if any - **Several releases enclosed**

Practice 9J – Purchasing Land

If fee property or conservation easement was purchased: N/A

- ☐ Purchase and sale agreement
- ☐ Qualified independent appraisal or letter of opinion

If acquired above the appraised value:

- ☐ Documentation of how project avoided private inurement (such as additional documentation of property's unique value, additional documentation of public benefit, or minutes of board deliberations specifically addressing this question)

If a bargain sale transaction:

- ☐ Written recommendation to landowner to consult legal counsel regarding implications of bargain sale or internal documentation of verbal recommendation

- ☐ Written recommendation to landowner to consult financial advisor regarding implications of bargain sale or internal documentation of verbal recommendation

Practice 9K – Selling Land or Easements N/A

- ☐ Protection agreement over the sold property
- ☐ Appraisal summary
- ☐ Appraiser qualifications
- ☐ Marketing materials

Practice 9L – Transfer and Exchange of Land N/A

- ☒ Documentation of transfer agreements **See General, Quitclaim Deed**
- ☒ Information documenting that new holder can provide ongoing protection and stewardship of conservation values – **C.R. conveyed to Essex County Greenbelt Association**
- ☒ Appraisal summary **See 10B**
- ☒ Documentation of donor intent - **See Quitclaim Deed page 2 (General)**

Practice 10A – Tax Code Requirements

- ☒ Written documentation that the landowner was notified of tax code requirements, if donation (may be part of letter provided to the landowner to seek independent legal and financial counsel) Done verbally
- ☐ Evidence that the organization reviewed the project against federal and/or state requirements, if donation

Practice 10B – Appraisals

- ☒ Letter or other written documentation that the landowner was notified of the appraisal requirements, if donation (may be part of other written communication to landowner) **Done verbally**
- ☐ Letter or other written documentation from land trust requesting a copy of the appraisal or explaining land trust policy on involvement in donated easements, if donation
- ☒ Copy of the appraisal summary

Questions 11A through 11I for conservation easement files only:

Practice 11A – Funding Easement Stewardship

- ☐ Stewardship fund calculation - **N/A**
- ☐ Indication that a stewardship contribution was received (such as a donor acknowledgement letter), that a pledge is being tracked or that a plan is in place to secure the funds (include the plan)

Practice 11B – Baseline Documentation Report N/A

- ☐ Baseline documentation report

- ☐ Baseline map (may be the same map as attached in "general" above)

Practice 11C – Easement Monitoring N/A

- ☐ Monitoring reports from at least the last five monitoring visits (or since date acquired if acquired within last five years)
- ☐ Copy of summary or other most recent post-monitoring information sent to the landowner

Practice 11D – Landowner Relationships

Documentation of the landowner's invitation to the monitoring visit and explanation of the monitoring procedures provided to the landowner - N/A

If the easement property has changed hands:

- ☐ Record of meeting with the new landowner

Practice 11E – Enforcement of Easements

If the easement has been violated:

- ☐ Record of how the organization addressed the violation N/A
- ☐ Indication that the violation was resolved according to land trust policy

Practice 11I – Amendments N/A

If the easement has been amended:

- ☐ Record of the amendment
- ☐ Indication that amendment was completed according to land trust policy

Questions 12A through 12D for fee-owned property files only:

Practice 12A – Funding Land Stewardship

- ☒ Management or stewardship fund calculation
- ☐ Indication that a management or stewardship contribution was received (such as a donor acknowledgement letter), that a pledge is being tracked or that a plan is in place to secure the funds (include the plan)

Practice 12C – Land Management

- ☐ Property land management plan (or table of contents if it is a long and detailed plan)
- ☐ Management plan map (may be same map as attached in "general" above)
- ☒ **BTA/BOLT, Inc. maintains the trails – done by volunteers and board members on the organized weekly hikes See enclosure**

Practice 12D – Monitoring Land Trust Properties

- ☒ Property monitoring/inspection reports from at least the last five inspection visits (or since date acquired if acquired within last five years)
- ☐ Record of resolution of any management problems N/A

Additional Information

The organization is welcome to include any additional information that may help the Commission understand the project in question, including correspondence with the landowner, minutes or notes from internal discussions on the project, press releases, etc. Please list any additional documents in the final checklist provided with the project file.

HAVE ADDED OUR HIKING AGENDA to IAC - Land management -
to ^{try to} give a clearer picture of our relationship to our Land and
Town.

There is a large rock outcropping on the north that is surrounded by a mature forest of
spruce, fir, and maple. Some white pine can also be found in these woods.
One side of the Lakeside Trail is bordered by Old Mountain Road, a dirt road that was
long used by farmers in the 1900s.

Once County Executive holds the Conservation Resolution.

Erickson Trail

Acquired November 30, 2004. This land was a gift from William and Katherine Erickson to BTA/BOLT, Inc.

The "Erickson Trail" consists of 15 acres abutting the Lord Woods (owned by the Town of Boxford), located off of Lawrence Road or via trail easement from Berry Patch Lane in East Boxford.

The trail begins in a hardwood forest with abundant wildflowers and leads through wetlands to a beaver pond. Deer, fisher cat and beaver are among the mammals that reside here. Barred owls are also found in this area, as there are owl boxes in the adjacent 33 acre Lord Woods that were installed in 2003. This Lord Woods is a conservation property owned by the Town of Boxford.

There is a large rock outcropping on the trail that is surrounded by a mature woodlot consisting of beech, oak and maple. Some white pines can also be found in these woods. One side of the Erickson Trail is bordered by Old Mortimer Road, a dirt road lined with stone walls that was used by farmers in the 1800s.

Essex County Greenbelt holds the Conservation Restriction.

BTA/BOLT LAND PROTECTION CRITERIA

BTA/BOLT is committed to pursuing a strategic method of land conservation in Boxford and to assisting the Town of Boxford and other conservation partners in acquiring land or interests in land that protect our ecological, agricultural, recreational, or scenic resources, values, and heritage.

BTA/BOLT will consider the following criteria in evaluating whether to support a land protection opportunity (other important factors not listed here, but relevant to a particular project, may also be considered by the Board at its discretion).

The point system below is only a guideline which attempts to quantify important conservation values (use points provided or check all that apply).

A. Factors Which May Promote BTA/BOLT's Involvement in a Conservation Project

- ☒ Size of Parcel: 1 point for every 5 acres
- ☒ Adjacent to other Open Space: 1 point for every open space parcel that the land is adjacent to or connects to with a trail easement.
- ☐ Adjacent to Bio Map Core Habitat/Supporting Landscape Habitat and Rare Species: 1 point for being adjacent to or containing Bio Map Habitat and if endangered species present, 3 points for each endangered species, 2 points for each threatened species, and 1 point of each species of special concern.
- ☒ Conservation Value: 1 point if land protects wetland resource areas, watershed resource areas, ponds or riverfront/stream front areas, unique geological features, unique topographical features, or unique flora and fauna.
- ☐ Scenic Value: 1 point if land protects scenic qualities or vistas important to the community.
- ☐ Agricultural Value: 1 point if land promotes farming and/or agricultural activities such as forestry, dairying, or harvesting of hay and other crop products.
- ☐ Historical Value: 1 point if land promotes historical values important to the community.
- ☒ Recreational Value and Public Benefits: 1 point if public access, recreational opportunities, or other public benefits are available.
- ☒ Boxford Open Space Report Designation: 1 point if the land is designated as Priority Open Space in the 1996 Open Space Report and as may be revised in the future.
- ☒ Promotes Future Conservation: 1 point if land is located so as to promote expansion of conservation activity in the area.
- ☐ Endowment Fund: 1 point if the landowner is willing to contribute funds toward the stewardship endowment for monitoring and maintenance purposes.

Notwithstanding the property's ranking using the above criteria, BTA/BOLT will not acquire an interest in land, by donation or by purchase, if the property would financially overburden BTA/BOLT, jeopardize its nonprofit status, tarnish the organization's reputation in the community, or impose unsustainable stewardship obligations.

B. Factors Which May Limit BTA/BOLT's Involvement in a Project

- ☒ [] The property is too small to be significant for its conservation purpose and there is little likelihood of adjacent properties being protected to protect the area's conservation values.
- ☐ [] The proposed open space is part of a development proposal which is likely to have significant adverse impacts on conservation resources.
- ☐ [] Adjacent properties are being, or are likely to be, developed in a manner that would significantly diminish the conservation value of the property in question.
- ☐ [] There is reason to believe that the land or easement would be unmanageable or unenforceable within BTA/BOLT's resources (due to frequent incidence of destructive trespassing, multiple ownerships of land, mixed land uses, and/or irregular lot configurations).
- ☐ [] The property is found to be contaminated.
- ☐ [] Ethical or public image problems exist with the project.

C. Examples of Types of Conservation Methods used by BTA/BOLT

- Source of Information for Public about Conservation Methods and Values (newsletter/press/brochures)
- Facilitator/Negotiator/Coordinator (helping behind the scenes)
- Conservation Partner (with other conservation organization)
- Fee Ownership of Land **BTA/BOLT**
- Temporary Fee Ownership (with planned transfer to another entity/town)
- Conservation Restriction/Easement **Essex County Greenbelt**
- Trail Easement
- Limited Development (used in conjunction with the above methods to help fund protection of the majority of property involved).



Baseline Inspection Report

CR Key: BOX-O

Property Name: Ericson/BTA/BOLT
Date of Inspection: 10/31/06
Recorded: 12/23/2005
Plan Book/Page (if applicable): 144/35

Location: Lawrence Rd/Main St.
Acreage: 15
Book/Page: 25225/138

Grantor(s): BTA/BOLT
Grantor Address: PO Box 95, Boxford, MA 01921

Owner name (if different from grantor):
Owner address:

1. Did the owner accompany you on the inspection? No
How was the notice of visit given, or permission obtained?
A letter was sent prior to the visit, confirmation was made over the phone.

2. Describe the details of your inspection (where you walked, etc):
Our site walk began along the western boundary of the property. We then walked along the trails toward the eastern and northern portions of the property. We walked along the northern boundary of the property back to the main trail. The property consists of wetland and wooded upland.

3. Present use of restricted property:
Protected open space.

4. Note any observed violations of the terms of the conservation restriction:
No violations were noted during the time of the site walk.

5. Present use of abutting properties:
Open space.

6. Describe any rare or unusual plant or animal life, or signs of:
None were noted.

7. Additional remarks:

Names of those on site inspection: David Rimmer, Kate Walton
Time spent on property: 50 minutes

Inspection team leader (name and signature): David Rimmer

Attach photo log to this form

Send a signed copy of this form to owner. Date sent: _____

October 19, 2004

APPRAISAL REPORT

15± Acres of Vacant, Residentially-Zoned Land

Off Lawrence Road

Boxford, MA 01921

RE: OPINION OF MARKET VALUE
15± Acres of Vacant, Residentially-Zoned Land
Off Lawrence Road
Boxford, Massachusetts

Located at:

Off Lawrence Road

Boxford, Massachusetts

In accordance with **Effective Valuation Date:** October 1, 2004, we have examined the above referenced real property for the purpose of providing an opinion as to the current market value of a Fee Simple Interest (as defined "Definitions") in the property as of October 1, 2004, the date of our inspection.

Requested by:

As agreed, we have examined the property as set forth in the attached USPAP-compliant, November 13, 2004, Report intended use by you and your advisors to support the value for charitable gifting purposes. Our market value opinion is based on cash terms or conventional market financing terms available as of the effective valuation date.

Prepared by:

In accordance with **Leslie F. Brooks, R.A.**, it is our opinion that the Market Value (as defined) of the 15± Acres of Vacant, Residentially-Zoned Land in the subject property as of October 1, 2004, was:

\$52,500

FIFTY-TWO THOUSAND FIVE HUNDRED DOLLARS

William B. Ericson, Jr.

October 19, 2004

Dear Mr. Ericson:

Additional documentation in support of the above-outlined market value opinion is contained in the attached appraisal report, respectfully submitted for your review.

October 19, 2004

William B. Ericson, Jr.
13 Lawrence Road
Boxford, MA 01921

RE: OPINION OF MARKET VALUE
15± Acres of Vacant, Land-locked Land
Off Lawrence Road
Boxford, Massachusetts

Dear Mr. Ericson:

In accordance with your request, we have inspected the above-referenced real property for the purpose of providing you with an opinion as to the current *Market Value* of a *Fee Simple* interest (see attached "Definitions") in the property as of October 1, 2004, the date of our inspection.

As agreed, our opinion of *Market Value* is set forth in the attached USPAP-compliant, ***Summary Format Appraisal Report*** intended use by you and your advisors to support the property's market value for charitable gifting purposes. Our market value opinion is based on cash terms or conventional market financing terms available as of the effective valuation date.

In accordance with the analyses performed, it is our opinion that the Market Value (rounded) of a Fee Simple interest in the subject property as of October 1, 2004 was:

\$52,500

FIFTY-TWO THOUSAND FIVE HUNDRED DOLLARS

William B. Ericson, Jr.

October 19, 2004

Page 2

Additional documentation in support of the above-outlined market value opinion is contained in the attached appraisal report, respectfully submitted for your review.

Sincerely,

Leslie F. Brooks

Leslie F. Brooks
(Massachusetts Gen. Cert. #4035)

James E. Monahan

James E. Monahan
(Massachusetts Gen. Cert. #3481)

The most probable and legal use of a land or improved property, which is physically possible, appropriately supported financially, feasible, and results in the highest value.

The value opinion reported herein is that of Market Value.

Market Value is defined as follows:

The most probable price which a property should bring in a competitive and open market under all conditions requisite to a sale, the buyer and seller each acting prudently and knowledgeably and assuming the price is not affected by undue influences. Implicit in this definition is the assumption of a sale as of a specified date and the pricing of the property in terms of the highest and best use of the property.

(1) Buyer and seller are typically motivated.

(2) Both parties are well-informed, well-advised, and acting in what they consider their best interests.

(3) A reasonable time is allowed for exposure in the open market.

(4) Payment is made in terms of cash or United States dollars or in terms of financial arrangements comparable thereto.

(5) The price is unaffected by the normal fluctuations in the property sold unaffected by special or peculiar features of the property or other considerations connected with any one associated with the sale.

Prepared by William B. Ericson, Jr. for Appraisal Institute, 1991.

For information only, between business of local "Appraisal" Board, 1991.

For information only, between business of local "Appraisal" Board, 1991.

1. **Pertinent Definitions**

The property interest appraised herein is that of Fee Simple Estate.

Fee Simple Estate is defined as:

Absolute ownership unencumbered by any other interest or estate; subject only to the limitations of eminent domain, escheat, police power, and taxation.¹

The land planning analysis contained in this report provides technical and regulatory support for the property's Highest and Best Use.

Highest and Best Use is defined as:

The reasonably probable and legal use of vacant land or improved property, which is physically possible, appropriately supported, financially feasible, and results in the highest value.²

The value opinion reported herein is that of Market Value.

Market Value is defined as follows:

The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

- (1) Buyer and seller are typically motivated;*
- (2) Both parties are well-informed or well-advised, and acting in what they consider their best interests;*
- (3) A reasonable time is allowed for exposure to the open market;*
- (4) Payment is made in terms of cash in United States dollars or in terms of financial arrangements comparable thereto; and*
- (5) The price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.³*

¹ The Dictionary of Real Estate Appraisal: The Appraisal Institute, 1993.

² Dictionary of Real Estate Appraisal, American Institute of Real Estate Appraisers, Chicago, Illinois, 3rd printing, 1987; Page 152.

³ The Uniform Standards of Professional Appraisal Practice (USPAP): The Appraisal Foundation, 1997.

The value opinion contained in this report considers the subject property's encumbrance by a perpetual conservation restriction.

2. **Scope of Analysis**

In consideration of the intended use/users of this report and in accordance with our agreement, the *Market Value* opinion is set forth in a ***Summary Appraisal Report*** prepared and delivered in full conformance with the Uniform Standards of Professional Appraisal Practice (USPAP) Standards Rule 2-2(b) and 8-2(b).

The specific scope of analysis involved a review of: The subject property's title ownership and history; Physical site features and planning constraints; Pertinent land use regulations and encumbrance as they effect the subject property's highest and best use; Consideration of the subject property's local and regional market position; and, real estate market supply/demand trends and pricing as of the effective valuation date.

3. **Effective Valuation Date**

The subject property was inspected by Leslie F. Brooks on October 1, 2004. The inspection date serves as the effective valuation date of this appraisal.

4. **Limiting Conditions, Assumptions and Hypothetical Conditions**

This appraisal incorporates survey information and legal descriptions which are considered accurate for planning and valuation purposes. Any significant discrepancy in *actual* land area indicated by a future survey may affect the market value opinion rendered herein.

5. **Title Ownership**

As of the effective valuation date, fee simple title to the subject property vested as follows:

William B. Ericson, Jr. and Katherine Edith Ericson

As Tenants by the Entirety

53 Lawrence Road

Boxford, Essex County, Massachusetts 01921

The subject property comprises a portion of the property described in a deed conveyed by William B. Ericson, Jr. to William B. Ericson, Jr. and Katherine E. Ericson on April 6, 2000 (Essex County Book 16280, Page 279) for nominal consideration. The subject comprises the northerly, 15 acre portion of a 25± acre tract depicted on a survey plan entitled: "*Plan of Property in Boxford as Surveyed for Helen K. Atwood, Salem, Massachusetts, Robert B. Parkhurst, Surveyor, Boxford, Massachusetts, October 1956,*" recorded with the Essex County Registry of Deeds in Plan Book 107 as Plan 16.

Accordingly, the total appraised land area is 15± acres.

6. The subject property was previously conveyed by Robert M. Hacking and Elizabeth L. Hacking to William B. Ericson, Jr. on October 29, 1996 (Essex County Registry of Deeds Book 13827, Page 222).

6. **Property Identification and Description**

The subject property is referenced for taxation purposes by the Town of Boxford as a portion of Map 27, Block 1, Parcel 25. The 15± acre subject property is not separately assessed by the Town, but comprises the northerly portion of the 25± acre single tax parcel - the southerly 10± acres of which is improved with a single-family residence owned by the Ericsons.

The subject parcel is irregular in configuration and consists entirely of wooded upland with no form of public road frontage or permanently deeded access. A broad wooded upland area to the northwest of the property does not affect its overall utility. The interior topography is generally level to gently rolling with an average interior elevation of 415± feet.

A compiled Base Plan and Aerial Ortho Base Plan of the subject property are provided on the following pages of this report.

7. **Limiting Conditions, Assumptions and Hypothetical Conditions**

The market value opinion contained in this report considers the northerly 15± acres of a 25 acre gross parcel owned by William B. Ericson, Jr. Accordingly, this appraisal assumes a separate division of the subject 15± acres from the remaining property and does not consider any added utility gained through assemblage with adjoining parcels. Accordingly, in its assumed configuration the subject property lacks any form of public or private road frontage or deeded access rights and is considered land locked property.

8. **Tax Assessment Summary**

The table below provides a summary of the Fiscal Year 2004 real estate taxation of the subject property.

Table III
Assessed Value Summary

Parcel ID	Land Area	Land Value	Buildings	Total	Total Tax
27/01/25	25.16 Acres	\$303,500	\$229,900 + 3,700	\$537,100	\$6,826.54

Compiled Base Plans of the subject property are provided on the following pages of this report.

9. Highest and Best Use

The 15± acre subject property is located entirely within the Residential/Agricultural Zoning District. The zoning designation stipulates a minimum lot size of 2 acres and a minimum of 250 feet of public or private street frontage. With no form of legal street frontage and a lot area of 15± acres, as a newly divided parcel, the subject property does not meet the standard for qualification as a legal, pre-existing, non-conforming lot of record. Accordingly, the highest and best use of the subject property calls for low intensity recreational use.

10. Valuation

The subject property is appraised herein in accordance with the Sales Comparison Approach. The Income and Cost Approaches were deemed inappropriate due to the lack of an absentee investor market for the subject property type and the property's vacant status.

A local and regional review of closed transactions involving limited utility or restricted land in comparable *North Shore* market settings yielded sufficient data for a well-supported valuation of the subject property in accordance with the Sales Comparison Approach.

Specific comparable sales considered in the subject analysis are included in Exhibit A on the following page of this report. Qualitative and quantitative adjustments may to each of the primary comparables are summarized in the Sales Adjustment Grid following Exhibit A.

In accordance with the analyses performed, it is our opinion that the Market Value of a Fee Simple interest in the subject property as of October 1, 2004, based on a unit rate of \$3,500 per acre was:

\$52,500

FIFTY TWO THOUSAND FIVE HUNDRED DOLLARS

EXHIBIT A
UNBUILDABLE/CONSTRAINED LAND SALES
North Shore Regional Data Survey
1995-Present

Sale No.	Location	Date of Sale	Sale Price	Lot Size (Acres)	Indicated Price/Acre	Grantor/Grantee	Comments
1	Hill Street Topsfield	2/9/95	\$25,000	6.04±	\$4,136±	Latty/Riley	Abutter purchase of rectangular street frontage tract. Purchased for protection. Did not perc. Assessed at time of sale at \$15,400.
2	51 Fenno Drive Newbury	3/11/96	\$8,000	2.53±	\$3,162±	J. Parker/ Lynda Coleman	Marshland sale - interior location.
3	64 Salem Road Topsfield	3/25/96	\$41,110	8.28±	\$4,965±	Peabody Essex Museum/Harrison (Bk. 13469, P. 170)	Abutter purchase of upland hay meadow with extensive Route 1 frontage. Property did not perc (verified by extensive soil testing). Assessed at \$17,700.
4	Off Ipswich Road Boxford	10/17/96	\$76,000	20.62±	\$3,685±	S. Gray/ W. Tagerman	Back land constrained by wetland.
5	7 Larkin Lane Newbury	1/2/97	\$100,000	27.30±	\$3,663±	A. Rogers/ Eagle Building Co.	Wooded backland parcel purchased for assemblage with adjoining land.
6	Baileys Lane West Newbury	1/13/97	\$250,000	138.00±	\$1,811±	B. Merrill/ L. Kimball	Two-tract purchase (bisected by road) of filled crop land subject to Agricultural Preservation Restriction (APR).
7	136 R Middle Rd. Newbury	2/27/97	\$21,000	10.00±	\$2,100±	E.L. Brown/ F. Littlefield	Marsh/wetland abutter purchase. No direct street frontage.
8	Academy Road (Lots A and C) North Andover	4/15/97	\$32,000	12.13±	\$2,638±	84 Academy Road RT/MA. Con. Land Tr.	Land encumbered by a conservation restriction.

19	Rear Smiths Lane Rowley	4/20/00	\$24,000	7.5± ac.	\$3,200±	Jeffrey L. Lyon & James W. Wilson/ Bartlett-Rowley Trust	Landlocked woodland with no form of legal frontage access.
20	24 Lufkin Point Road Essex	12/21/00	\$14,000	6.2± ac.	\$2,258±	Joseph H. Whelton/ Jill E. Martin	Abutter purchase of mostly tidal wetland associated with the Essex River Basin. Limited utility.
21	Off Belcher Street Essex	11/9/01	\$90,000	24.56± ac.	\$3,664±	30 Belcher Street LLC/Donovan Conservation LLC	Abutter purchase of sloping, wooded upland with no direct street frontage. Moderate slope constraints and significant wetland area. Purchased as assemblage.
22	Off Belcher Street Essex	11/20/01	\$45,000	14.69± ac.	\$3,063±	30 Belcher Street LLC/Jack Schylling	Abutter purchase of two discontinuous parcels offering limited (wetland-constrained) utility.
23	Rear Mill Road Ipswich	11/29/01	\$56,500	11.26±	\$5,017	Ipswich River Preservation LLC/ Frederick Winthrop	Partially encumbered (C.R.) Wooded upland with Ipswich River frontage. Abutter purchase. Landlocked parcel.
24	Rear Jewett Street Georgetown	1/17/01	\$220,000	37.17±	\$5,918	M. Newman/ C. Wylie	Irregularly-shaped vacant tract abutting federal right of way or Interstate 95 in Georgetown. Predominantly wooded property is moderately impacted by traffic noise and carries decided rights of access over a 40 foot wide access easement over the abutting property. Abutter purchase for protection/buffer and possible future single-family home site development.
25	Rear Main Street West Newbury	11/19/02	\$18,000	6.18±	\$2,912	W.C. Cammett Engineering Inc./ John M. Alden	Abutter purchase of access and wetland constrained acreage partially encumbered by power easement granted to the New England Power Company in 1957. Purchase price reflects limited utility.
26	Lot 25 - Middle Street West Newbury	2/13/02	\$35,000	12±	\$2,916	M & J Realty Trust/ 20 Middle Street Realty Trust	Abutter purchase of wetland constrained parcel with extensive public frontage on Middle Street. Unbuildable land purchased for privacy protection.

9	175 High Road (Seal Island) Newbury	5/30/97	\$10,000	12.40±	\$806±	12 Howard St. Rt./ Lone Goose Rt.	Isolated marshland with 1,810± feet of frontage on Plum Island River. No street frontage.
10	57 Patmos Road Newbury	6/17/97	\$7,500	2.50±	\$3,000±	D. McHugh/ D. Tirck	Marshland on non-accepted way. All marsh with tidal estuary frontage.
11	Boxford Street North Andover	6/20/97	\$125,000	12.93±	\$9,667±	Szelest/Brookview County Homes, Inc.	Excess land purchased as open space for adjoining cluster development.
12	Cabot Street Beverly	5/4/99	\$225,000	45±	\$5,000±	G. Batchelder/ Project Adventure, Inc.	Apportioned value for mix of upland meadow, forest and tilled land. Subject to perpetual conservation restriction and APR.
13	Off Branch Lane Beverly	12/18/99	\$81,250	30±	\$2,708±	Joan M. Lee/ECGA (½ interest) Charles Ganson, Jr./ECGA (½ interest) Bk. 16089, P 577+	30± landlocked acres situated in prime Beverly location. Property surrounded by conservation (Greenbelt) land.
14	Lawrence Mountain Road Gloucester	5/17/99	\$192,400	19±	\$10,000±	Robinson/ECGA Bk. 15677, P. 36	According to ECGA, this is a non-waterfront property with development potential for 1 lot.
15	Langsford Pond Gloucester	6/18/99	\$125,000	12±	\$10,416±	Kenyon/ECGA Land Court Doc. # 10817	According to ECGA, 10± acres of this property is comprised of a pond, with 2± acres of buildable upland. There was development potential for 1 lot.
16	6 Fox Run Road Ipswich	11/30/99	\$20,000	1.03±	\$19,417±	N. Shore Fin. Services/John M. Thomson	Abutter purchase of unbuildable lot in Appleton Estates subdivision. Site did not perc.
17	36 Laurel Lane Gloucester	4/29/99	\$25,000	2.5± ac.	\$10,000±	Wilfred L. Burke/ Noel Mann	Unbuildable wood lot purchased by abutter.
18	114-R Magnolia Avenue Gloucester	10/5/99	\$21,500	1± ac.	\$21,500±	Rita M. Doyle/ Wendee Collens Almela	Landlocked wood lot purchased by abutter.

27	Dows Basin	2/20/04	\$33,000	22.1±	\$1,493	H. Gaspar/ Town of Ipswich	Landlocked property abutting Dow Brook Reservoir. Purchased by Town of Ipswich for water supply protection and conservation. Map 20C, Lot 3. Property was appraised at \$40,000 (\$2,000 per acre) but sold for its current assessed value.
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STANDARD ASSUMPTIONS AND LIMITING CONDITIONS

Report of the appraiser appearing in this report is subject to the following assumptions and conditions and to such other specific and limiting conditions as appear elsewhere in the report:

The appraiser assumes no responsibility for matters of a legal nature affecting the property, such as the title, liens, or the appraiser's conduct, or for any other matter which is assumed to be good and marketable. The property is appraised as if it were a fee simple interest.

Maps, plans, and exhibits in the report may show approximate dimensions and locations to assist the reader in visualizing the property. The appraiser has conducted a visual inspection of the property. Data relative to size and area were taken from

public records. It is assumed that no encroachments exist. The appraiser, by making this appraisal, is not required to give further opinion, or to appear in court with reference to the property, but is to be held responsible for the accuracy of the information given. The appraiser is not responsible for the accuracy of the information in the report between final and the appraiser's signature. The appraiser is not responsible for the accuracy of the information in the report between final and the appraiser's signature. The appraiser is not responsible for the accuracy of the information in the report between final and the appraiser's signature.

The appraiser assumes that there are no hidden or undisclosed conditions of the property, or any parts of the property, which would require a separate appraisal. The appraiser is not responsible for the accuracy of the information in the report between final and the appraiser's signature.

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STANDARD ASSUMPTIONS AND LIMITING CONDITIONS

The certification of the appraiser appearing in this report is subject to the following assumptions and conditions and to such other specific and limiting conditions as are set forth by the appraiser in the report:

1. The appraisers assume no responsibility for matters of a legal nature affecting the property appraised or the title thereto, nor do the appraisers render any opinion as to the title, which is assumed to be good and marketable. The property is appraised as though under responsible ownership.
2. Sketches, maps, plans, and exhibits in the report may show approximate dimensions and are included to assist the reader in visualizing the property. The appraisers have made no survey of the property. Data relative to size and area were taken from sources considered reliable. It is assumed that no encroachments exist.
3. The appraisers, by reason of this appraisal, are not required to give further consultation, testimony, or attend court with reference to the property that is the subject of this appraisal, unless arrangements have been otherwise made.
4. Any distribution of the valuation in the report between land and the improvements applies only under the existing program of utilization. The separate valuations, if any, for land and buildings must not be used in conjunction with any other appraisal and are invalid if so used.
5. The appraisers assume that there are no hidden or unapparent conditions of the property, subsoil, or structures (if applicable) that would render it more or less valuable. The appraisers assume no responsibility for such conditions or for engineering which might be required to discover them.
6. Information, estimates, and opinions furnished to the appraisers and contained in this report were obtained from sources considered to be reliable and are believed to be true and correct. However, no responsibility for the accuracy of such items can be assumed by the appraisers.
7. Neither all, nor any part of the content of the report, or copy thereof, including conclusions as to the property value, the identity of the appraisers, professional designations, reference to any professional appraisal organizations, or the firms with which the appraisers are associated, shall be used for any purposes by anyone but the client specified in the report, the borrower if the appraisal fee is paid by same, mortgage insurers, or professional appraisal organizations, without the previous written consent of the appraisers; nor shall it be conveyed by anyone to the public through advertising, public relations, news, sales, or other media, without the written consent and approval of the appraiser.
8. On all appraisals subject to satisfactory completion, repairs, or alterations, the appraisal report and value conclusions are contingent upon completion of the improvements in a workmanlike manner.
9. Unless otherwise stated in this report, the existence of hazardous material, which may or may not be present on the subject property, was not observed by the appraiser. The appraisers have no knowledge of the existence of such materials on or in the property. The appraisers, however, are not qualified to detect such substances. The presence of

materials such as asbestos, urea formaldehyde foam insulation (UFFI), or other potentially hazardous substances may affect the value of the subject. The value estimate is predicated on the assumption that there is no such material on or in the subject property that would have an impact on value. No responsibility is assumed for any such conditions or for any expertise or engineering knowledge that would be required to discover them. The client is urged to retain an expert in this field, if desired.

10. The date of value is indicated within this report. Any forecasts included in this report are based on existing market conditions and expectations. The appraiser takes no responsibility for any events, conditions, economic factors, physical factors, or other circumstances occurring after the date of value that would affect the opinions expressed in this report.
11. Except as otherwise noted, it is assumed that there are no encroachments, building violations, code violations, or zoning violations affecting the subject property.
12. Responsible ownership and competent property management are assumed.
13. It is assumed that there is full compliance with all applicable federal, state, and local environmental regulations and laws unless any noncompliance is stated, defined, and considered in the appraisal report.
14. It is assumed that all applicable zoning and use regulations and restrictions have been complied with, unless a nonconformity has been stated, defined, and considered in the appraisal report.
15. It is assumed that all required licenses, certificates of occupancy, consents, or other legislative or administrative authority from any local, state, or national government or private entity or organization have been or can be obtained or renewed for any use on which the value estimate contained in this report is based.

Leslie Brooks is currently licensed as a Certified General Appraiser in Massachusetts (#4015) and James Monahan is licensed as Certified General Appraiser in Massachusetts (#3481).

3. The use of this report is subject to the requirements of the Massachusetts Board of Real Estate Appraisers and the Appraisal Institute relating to review by their duly authorized representatives.
9. No one provided significant professional assistance to the person signing this report.

Appraiser: Leslie Brooks
Leslie E. Brooks, MA

Date: 10/25/09

James Monahan
James E. Monahan

CERTIFICATION OF VALUE

We hereby certify that:

1. Leslie Brooks has made a personal inspection of the property that is the subject of this report.
2. To the best of our knowledge and belief, the statements of fact and the opinions contained in this report are true and correct.
3. The reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are our personal, unbiased professional analyses, opinions, and conclusions.
4. We have no present or prospective interest in the property that is the subject of this report, and I have no personal interest or bias with respect to the parties involved.
5. Our compensation is not contingent upon the reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value estimate, the attainment of a stipulated result, or the occurrence of a subsequent event.
6. The appraisal was not based on a requested minimum valuation, specific valuation, or approval of a loan.
7. The analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the requirements of the Code of Professional Ethics and Standards of Professional Practice of the Massachusetts Board of Real Estate Appraisers and the Appraisal Institute, as well as the Uniform Standards of Professional Appraisal Practice of the Appraisal Foundation. Leslie Brooks is currently licensed as a Certified General Appraiser in Massachusetts (#4035) and James Monahan is licensed as Certified General Appraiser in Massachusetts (#3481).
8. The use of this report is subject to the requirements of the Massachusetts Board of Real Estate Appraisers and the Appraisal Institute relating to review by their duly authorized representatives.
9. No one provided significant professional assistance to the persons signing this report.

Appraisers:

Leslie F. Brooks
Leslie F. Brooks, RA

Date:

10/25/04

James E. Monahan
James E. Monahan

Date:

10/22/04

*Over 1,100 acres of open space and wildlife habitat preserved and
over 75 miles of trails for people to enjoy*



*Preserving the Nature of Boxford
for More Than 25 Years*

***Boxford Trails Association/
Boxford Open Land Trust***

7 Elm Street, P.O. Box 95
Boxford, Massachusetts 01921
Phone/Fax (978) 887-7031
www.btabolt.org

November 27, 2004

Mr. and Mrs. William B. Ericson, Jr.
53 Lawrence Road
Boxford, MA 01921

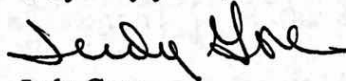
Re: Charitable Donation of Land to BTA/BOLT

Mr. and Mrs. Ericson:

Thank you for your generous donation of 15+/- acres on Lawrence Road, Boxford, Massachusetts to BTA/BOLT. This tremendous gift will protect wildlife habitat, critical watershed resources, and add to an important corridor of conservation land for people to enjoy. Your commitment to conservation and generous support are greatly appreciated by many and your gift will be enjoyed by many present and future generations.

BTA/BOLT is an IRC 501(c)(3) charitable nonprofit organization and this letter is being supplied to you for the purpose of documenting your charitable contribution for tax purposes. No goods or services were provided in exchange for your donation. Thank you again from all of us at BTA/BOLT.

Very truly yours,


Judy Gore,
President

*Over 1,100 acres of open space and wildlife habitat preserved and
over 75 miles of trails for people to enjoy*

MUNICIPAL LIEN CERTIFICATE
Town of Boxford
COMMONWEALTH OF MASSACHUSETTS

Requested by BOXFORD TRAIL ASS./ BOXFORD OPEN LAND TR Issuance Date: 11/17/2004

I certify from available information that all taxes, assessments and charges now payable that constitute liens as of the date of this certificate on the parcel of real estate specified in your application received on 11/15/2004 are listed below.

DESCRIPTION OF PROPERTY

Parcel ID: 27-01-25

53 LAWRENCE RD

ERICSON WILLIAM B JR TE
ERICSON KATHERINE E
53 LAWRENCE RD
BOXFORD MA 01921

Land area : 25.16 AC
Land Value : 303,500
Impr Value : 233,600
Land Use : 0
Exemptions : 0
Taxable Value: 537,100

Deed date: 04/06/2000 Book/Page: 16280/279

FISCAL YEAR	2005	2004	2003
DESCRIPTION			
COMMUNITY PRESERVATION SURCHAR	82.86	160.90	151.98
REAL ESTATE TAX	3,393.96	6,590.22	6,224.99
TOTAL BILLED:	3,476.82	6,751.12	6,376.97
Charges/Fees	.00	.00	.00
Abatements/Exemptions	.00	.00	.00
Payments/Credits	-3,476.82	-6,751.12	-6,376.97
Interest to 11/17/2004	.00	.00	.00
TOTAL BALANCE DUE:	.00	.00	.00

NOTE: Actual FY 2005 tax bills have not yet been issued.

*****BALANCE DUE FOR FY2005 REPRESENTS THE PRELIMINARY TAX ONLY*****
It is 51.5% of the net tax paid in FY2004. FY04 tax rate was \$12.27/M.
It is payable in two equal installments: 1st Quarter tax was due on 8/2/04, 2nd Quarter tax was due on 11/1/04.

The Tax Rate for FY 2005 has not been set: It will be set on or before 12/31/04. At that time, ACTUAL TAX BILLS will be issued for the remaining taxes due for FY2005: 3rd Quarter tax will be due 2/1/05, 4th Quarter tax will be due 5/2/05.

Title V Septic Repair Loan: If any, see above.

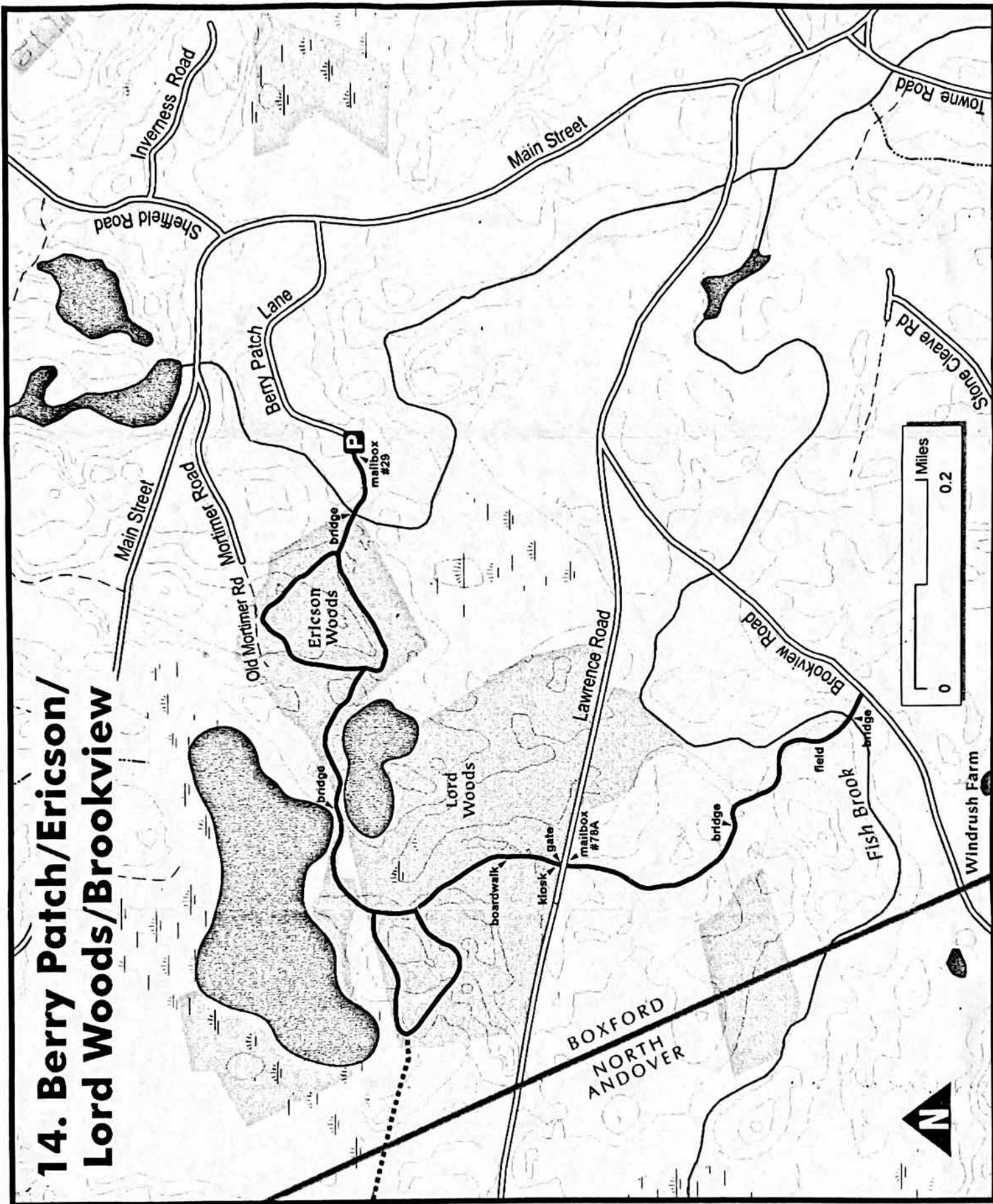
Community Preservation Surcharge effective FY2002 at a rate of 3% with a \$100,000.00 residential exemption.

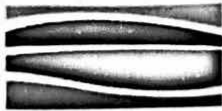
I have no knowledge of any other amount that constitutes a lien.

Ellen S. Guerin
ELLEN S. GUERIN
COLLECTOR OF TAXES

THIS FORM APPROVED BY THE COMMISSIONER OF REVENUE

14. Berry Patch/Ericson/ Lord Woods/Brookview





Greenbelt
Essex County's Land Trust

Ericson

June 28, 2013

Dear Ms. Judy Gore,

Ericson

Thank you for giving us permission to visit your property located at off Lawrence Rd + Main St
Buxford, MA that is subject to a conservation restriction (CR) held by the
Essex County Greenbelt Association. On May 13, 2013 we had a productive visit
and were pleased to see that the property is in full compliance with the terms of the CR.
Enclosed you will find a copy of the CR monitoring report from our recent visit. This
report is yours to keep and file in your original baseline report.

Greenbelt will continue making routine monitoring visits to your property every 1-2
years. You will be contacted prior to our next visit and provided with a monitoring report
shortly thereafter. I suggest you place this and all other future correspondence directly
into the appropriate section of the baseline report for safekeeping and easy access.

Finally, it is our goal to maintain open communications with you regarding your CR. In
an effort to be proactive and avoid any potential violations with the terms of the CR,
please stay familiar with the document and contact us if you have any questions,
especially when you are considering projects that might trigger a review and/or approval
by Greenbelt. I can always be reached at 978-768-7241.

Thank you.

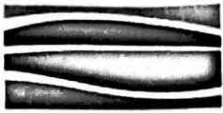
Sincerely,

David Rimmer
Director of Land Stewardship
dwr@ecga.org

Mike Carbone
Stewardship Program Assistant
mgc@ecga.org

cc:

encl.



Greenbelt

**Essex County Greenbelt Association
Conservation Restriction (CR) 2013 Monitoring Inspection Form**

CR ID: BOX-O Inspection Date: 5/13/13 Arrival Time: 3:20 Departure Time: 3:55

Issue Identified: NA

Follow Up: NA

Landowner Name(s): BTA/BOLT

CR Address: Lawrence Rd/Main St

Was the landowner/landowner representative contacted prior to visit? ☒ Yes ☐ No

Method(s) of contact: Email

Were there any changes to the landowner's contact info and/or preferred method of contact (e.g. email, cell phone, etc)? ☐ Yes* ☒ No

*Explain:

Was the landowner present on the visit? ☐ Yes ☒ No

CR Monitor(s) name(s): Mike Carbone and Danielle Christopher (ECGA)

Current Land Use: (check all that apply)

☐ Residential ☐ Agricultural ☐ Forestry ☒ Public Recreation ☐ Habitat Wetland
☐ Horses/Livestock ☐ Other:

Inspection Activities:

Were CR boundaries inspected? ☒ Yes ☐ No ☐ N/A

Did you observe any survey monuments/corners (e.g. SB/CBs, IPs, drill holes) along the CR boundaries? ☐ Yes* ☒ No

**PLEASE annotate approximate location(s) AND corner type(s) on your route map*

Were the boundaries of building/use area envelope(s) inspected? ☐ Yes ☐ No ☒ N/A

***Natural Changes Observed:** (since last year's monitoring visit)

☐ Storm Damage ☐ Invasive Exotics ☐ Flooding ☐ Erosion ☐ Other ☒ N/A

*Explain:

***Man-Made Activities/Changes Observed:** (since last year's monitoring visit)

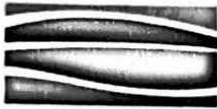
☐ Dumping ☐ Material Storage ☐ Clearing ☐ Abutter Encroachment
☐ Stone Wall Alteration ☐ New Structure ☐ New Road/Trail ☐ Dredging/Filling
☐ Excavation ☐ ATVs ☐ Other ☒ N/A

*Explain:

Did you observe any changes in adjacent land use that could cause possible impacts to the CR?

☐ Yes* ☒ No *Explain:

Anything Else of Interest Observed?



Greenbelt

Did the CR landowner have any questions or plans for the future to be discussed with Greenbelt?
Explain: No.

Did you observe any activities/management practices in need of further discussion by Greenbelt with the landowner? ☐ Yes* ☒ No

*Explain:

Data collected during monitoring inspection:

☒ Photos #0 ☐ GPS Track ☐ GPS Waypoint(s) ☐ N/A

Miscellaneous:

Any other pertinent info you would like to include in this report and/or continuation from questions above: NA

Monitor Signature: *Michael A. [Signature]* Title: Stewardship Program Asst. Date: 6-28-13

Reminder: Your monitoring visit is complete ONLY AFTER you have signed and dated all monitoring paperwork (Report Form, Route/Photo location map, Photo Sheet) and the originals have been delivered to Greenbelt.

**BOX-O Ericson/BTA/BOLT
Conservation Restriction
Monitoring Photo Key**

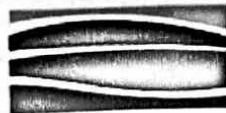
BOX-O

0 200 400 Feet



Legend

- ▲ Photopoints Spring 2013
- Greenbelt Conservation Restriction

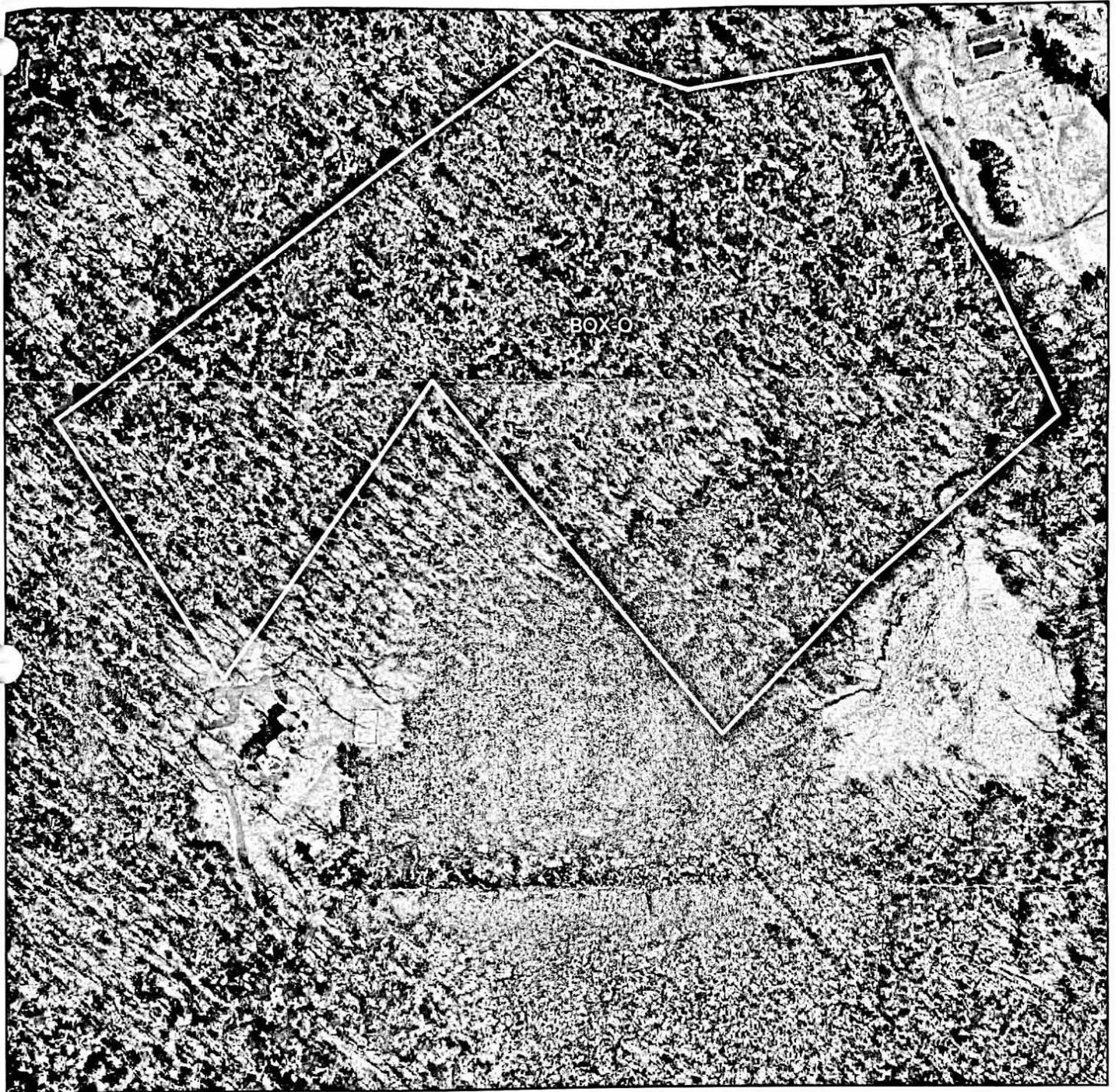


Greenbelt
Essex County's Land Trust

Source data obtained from survey plans, MassGIS, and Global Positioning Systems (GPS). Boundary lines, photo points and all other property attributes are approximate.

Map created by Essex County Greenbelt June 2013

BOX-0
Ericson/BTA/BOLT



0 300 600 Feet



Legend

-  GB Fee
-  GB CRs



Source data obtained from survey plans, MassGIS, and Global Positioning Systems (GPS). Boundary lines, photo points and all other property attributes are approximate.

Map created by Essex County Greenbelt March 2013